

Court No. - 1

Case :- WRIT - C No. - 6882 of 2020

Petitioner :- Sri Krishna Lal And 28 Others

Respondent :- State Of U.P And 4 Others

Counsel for Petitioner :- Rajesh Kumar Pandey, Rajesh Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri R.K. Pandey, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondent-corporation.

By means of this writ petition under article 226 of the constitution, the petitioner has prayed for a writ of mandamus to the respondent Executive Engineer as well as Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. to decide the application dated 29.7.2019 as well as application dated 2.9.2019.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question and for redressal of some other grievance.

Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment and other allied issues within two weeks from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 27.2.2020

Shiraz